The Universe is Binary

Sex, as a matter of fact

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May 09, 2025

Hydrogen and helium make up 99% of all observable matter in the universe. The rest is just a deviation from the norm, an outlier we shouldn't account for. Sounds absurd? I guess Mendeleev was woke. When we try to understand the world around us and our very own bodies, we are not simply observing reality as it is: we are constructing and utilizing a model—a framework through which we perceive, analyze, predict, and control our environment and the living beings around and among us. In order to justify our beliefs, we draw from empirical data, rationalize and hypothesize causation in relation to established insights; all within a plural and intertwined historical project of knowledge building and perception shaping. If we fail to admit some models are ineffective for understanding and describing certain phenomena within a given context, we're not helping ourselves in this project; we are simply reinforcing the narratives that we've grown to accept throughout history, potentially doing real harm along the way.

Certain qualities that appear to live on a singular dimension are given more nuanced and spectral recognition than increasingly diverse topics. Take human age, for example: humans are traditionally considered to be either minors, adults, or seniors. We seem to agree that a transition from one category into another is merely a traverse of an arbitrary mark, yet we can think of age in terms of a continuum to which we've attached those milestones for the purpose of legal recognition and ceremonial celebration. The underlying gradual nature of human aging is maintained while we do seem to value decimal divisions and lifecycle categories whenever the context calls for it.

Thus, we can conceive of a person's age through a variety of models, depending on the circumstances. Strangely enough, some properties like age, body weight, and stature are typically not construed through a binary lens. Unlike diversity of racialized, gendered, or (dis)abled bodies; those seem much harder to grasp as sophisticated aspects of human life. As variability becomes greater, our capacity to understand seems to shrink, and the urge to bifurcate the human population into a constrictive binary system—not even a spectrum—emerges. Female or male, gay or straight, white or of color, abled or disabled, ... These designations

are dumbed-down perspectives of intricate and composite natural phenomena, but our intuition struggles to conceive of them as diverse and multifaceted.

When we are confronted with the question of the sexed body, what it means to be female or male, and how we can incorporate this marked difference in the world, several models of perception are commonly utilized—implicitly, but every story of the sexed body ultimately is a descriptive model. Insisting on operating outside or above any framework is an illusion, an appeal to tradition or ancient scriptures. I lay out three popular perspectives, illustrated by examples, how they claim to reflect the truth, and why they are limited in conveying human diversity.

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The first model is the mythical sexed essence, the assertion that any person belongs to either of the two sexed categories, contingent on an immutable yet intangible reality. Manifested as an immaterial substance, symbolized by sex characteristics, possibly inconsistent or misleading, but incontestably *disclosed* by the fantasy of the karyotype. Beyond the observed traits that allow us to *know a woman when we see her*, the body encapsulates the capacity to reproduce. Or at least, the expectation that it *should* have or *could* have when it fails to do so. This model retains its strength in its flexibility and its power through its perceived signification of a reproductive teleology. It is the sexed body in *spirit*, impossible to neatly define without resorting to circular definitions[1], but its boundaries are strict. So strict that the merest glance at the nature of this spirit during the initial seconds of life mandates an entire lifetime within the boundaries that it imposes.

In a 2024 podcast, author Helen Joyce offers us a textbook example that unifies various characteristics, vaguely revolving around, yet transcending reproduction. While the factual essence remains uncaptured, it is expressed through various mechanisms of the body. Above all, it is given signification—*it matters*.

[1]The definition of sex provided by the second Trump administration is contingent upon the categories of female and male, while the categories in turn rely on the definition of sex.

> (a) "Sex" shall refer to an individual's immutable biological classification as either male or female. [...]
> (b) "Female" means a person belonging, at conception, to the sex that produces the large reproductive cell.
> (c) "Male" means a person belonging, at conception, to the sex that produces the small reproductive cell. (Trump, 2025).

> You can tell people's sex all the way through their bodies. It's not just our sex organs. There's a good name for people thinking it's just about our sex organs, which is bikini medicine[2]. Bikini medicine is the idea that humans are the same except for the bits that are covered by the bikini. Well, actually, your fingers are different. Your tendons are different. Everything's different between men and women, a little bit. In some ways, a lot, but in some ways, a little. Yeah, so basically, anything where the fact that we come in two sexes and that one of those sexes bears pretty much all the burden of reproduction. Anywhere that that matters, it matters that you acknowledge sex. (Winn, 2025, p. 1:10:31).
>
> —Helen Joyce

In the following example, political commentator Matt Walsh's attempt to outline womanhood builds on a more comprehensive list of elements, ranging from scientific testing, general appearance or behavior and childbearing capabilities; but most of all, sex is intuitively perceived—*preconceptually*.

> Women are adult human females. They have XX chromosomes. They can bear children and give birth. They're not necessarily nicer than men, but they sure are better looking. Even if you didn't know the science or use the exact right words, you could point a woman out pretty easily. By nature, they look and act differently from men. (Walsh, 2022).
>
> —Matt Walsh

Thus, sex is presented as an abstract *conclusion* drawn from a cluster of properties that have historically gained significance; subjectively assessed and evaluated within a heterosexual and Eurocentric tradition. While initial recognition and categorization of sex typically occurs at the time of birth and on the basis of observed external genitalia, it is speculated that the remaining markers of sex will reveal themselves coherently in later stages of sexual development. Perceived incongruence between those markers or divergence of aesthetic conformity give rise

[2]Bikini medicine is a critique addressing the problematic under-representation of women's health concerns outside reproductive health. Historically, medicine has centered male bodies as the default field of study: "For many years, the medical community has viewed women's health with a bikini approach, focusing essentially on the breast and reproductive system. The rest of the woman was virtually ignored in considerations of women's health; the tacit assumption was that women and men reacted comparably to diseases and drugs." (Wenger, 2004). By portraying bikini medicine as an established paradigm through which to see sex differentiation, a straw man is invoked. The term was coined to challenge the systemic patriarchal biases and the unjust allocation of resources. It is certainly not a formal proposal to disregard endocrinological, genetic, environmental, or psychosocial factors in the conception of sex. "When compared with the [Global Burden of Disease] study, major disease areas such as infectious disease, cardiovascular disease, and musculoskeletal disorders were underrepresented as topics in women's health publications." (Hallam et al., 2022). These specific health concerns cannot be attributed to the dimorphic divisions postulated by the cited speaker. Furthermore, it's unfortunate to see this decontextualized, as it does represent a serious threat to *all* women's health.

to tension when they contradict the notion of nature's intended complementary design.

The story of Herculine Barbin is one of the most famous histories of intersex people. Born in 1838 in France, she was initially assigned female at birth. Although she was consistently perceived as a girl and later a as a woman, at age 21, she was abruptly classified as male following medical examinations. She was barred from seeing her partner, and through enforced legal sex reassignment, she was ousted from her job as a teacher in a boarding school. She moved away to Paris, and she adopted a male persona but lived in poverty, only to die of suicide at age 29. Alexina—the name she used and identified with—saw herself as an "*exceptional* female, she did not perceive herself as necessarily beyond the boundaries of the female" (Holmes, 2004). Her extensive memoirs were published by Michel Foucault (Foucault, 1980) and her somber story has seen abundant coverage in the studies of sex and gender, emerging as an intriguing subject of discourse on sexual development and identity formation.

Alexina's date of birth marks Intersex Solidarity Day[3]. Over 100 million people worldwide (Blackless et al., 2000) do not conform to the restrictive, yet vaguely specified classifications of sex. The failure to recognize physical diversity still echoes in current-day juridico-medical coercive practices and institutionalized policing of sexed bodies. Intersex and transgender rigts advocates are united in an effort to counteract political and institutional regulation of healthcare practices targetting bodily autonomy. The USA has seen a dramatic rise of "laws that claim to protect minors' bodily integrity" (Katri & Sudai, 2025), yet this *protection* is disenginous; "By permitting coercive procedures for intersex minors and barring affirming care for trans minors while exempting cisgender minors from similar regulations, these bans reveal a deeper legislative agenda: enforcing sex and gender conformity. These restrictions, imposed without constitutional justification, undermine the rights of all minors and entrench societal control over their bodies." (Katri & Sudai, 2025).

The following series of random quotes illustrates expressions of incontrovertible certainty. They suggest a fixed intrinsic ontological substance and contest temporality and multiplicity. However, the essence remains unuttered, gesturing toward *something out there* but failing to unveil *what* is out there. Biology's *realness* and importance are emphatically reiterated but never consistently demarcated. Ruled like a lawless dictatorship.

> Women are adult human females. (Barrett, 2021).
>
> —Maya Forstater
>
> Female is real, and it's sex, and femininity is unreal, and it's gender. (Channel 4 News, 2018, p. 33:36).
>
> —Germaine Greer

[3]Also known as Intersex Day of Remembrance, November 8

> It's kind of obvious... 95% of it is just facts [...] sex realism means that you accept that sex is real. (Liang, 2025).
>
> —Helen Joyce

> [a woman is] biologically a woman. (Delaney & Bendery, 2022).
>
> —Sen. Lindsey Graham

> Biological sex is real. A gender recognition certificate is there to show that someone is now transgender, but that doesn't change their biology. (Times News, 2025, p. 00:18).
>
> —Kemi Badenoch

> You can be a male and be as feminine as you want to be, and you can be a female and be as masculine as you want to be, but biological sex is biological sex. (Pearce, 2025).
>
> —Sharon Davies

Statements reaffirming the natural authoritative power of sex differentiation are repeatedly made with presumptuous entitlement to veracity, yet legitimizing arguments that surpass self-reference are seldom provided. As though repetition upholds truth in itself. Millions of people all over the world report a strongly perceived sense of sexed embodiment that presents itself prior to conscious reflection, challenging or disputing assigned sex, and suggesting the possibility of a concealed essence that constitutes the true nature of the self. We should wonder why an interrogation shaped by a historically contingent account of *nature's intentions* is granted justification to dismiss and override personal insight when it concerns the subject's private and intimate experience.

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Instead, we could forego mythical thinking and spiritual conceptions, look at the body and perceive its true nature only through that which is quantifiable. In this model, there is no sexed essence that transcends material reality. A single trait is appointed, not as a signifier but as the very essence of the sexed body. The belief that there is no underlying substance other than the presence or absence of the penis, the Y-chromosome, ovaries, or the uterus, ... But pick one, and stick to that definition, or you will resort to the mythical referential model.

In this prime example, former UK PM Tony Blair *clarified* his binary and genital-oriented perspective,

> I'm definitely of the school that says, biologically, a woman is with a vagina and a man is with a penis. I think we can say that quite clearly. (Johnson, 2024).
>
> —Tony Blair, PM

This coincidentally leads us to arrive at the conclusion that he supports sex reassignment through surgical procedures. Despite this unexpected but welcome admission, this definition still does not reflect reality, as he fails to recognize the biological diversity of genitalia observed at birth.

Other political figures have expressed a similar oversimplified stance. In the following two fragments we find that sex assignment and *presumed* sex chromosomes are conflated—as if they are one and the same, yet sex chromosome analysis is rarely involved in sex assignment. In order to disqualify sex reassignment efforts and to reject diversity, attempts are made to pin down sexual categorisation to the initial observation at birth; an event or an act, an administrative record. MP Jonathan Gullis makes it *perfectly clear*:

> sex is not assigned at birth. You are born a man or you are born a woman. Those are indisputable facts. You have XY chromosomes or XX chromosomes. Again, that is not up for debate or discussion. (House of Commons, 2023, p. 6:51pm).
>
> —Jonathan Gullis, MP

In Rep. Madison Cawthorn directed to House Speaker Nancy Pelosi, we find a similar message, though with a slightly altered tone,

> Take notes, Madame Speaker, I'm about to define what a woman is for you. XX chromosome, no tallywacker. (Quay, 2022).
>
> —Rep. Madison Cawthorn

Both representatives are claiming that observing sex is straightforward, assumed to be free from interpretation. Yet, the Venn diagram of people assigned female at birth and those with XX chromosomes is not a perfect circle; there is a risk of both under- and overinclusion. While we currently understand that the SRY gene on the Y chromosome typically sets forth a complex and layered process of sexual development, genitalia are merely a superficial semblance of sex chromosomes. They remain distinct aspects, and the fact that we frequently rely on one to signify the other precisely illustrates this, while at the same time highlighting the possibility of divergence. The tradition of sex assignment predates our understanding of chromosomal sex by several millennia. The relatively recent invention of karyotyping and earlier observations of sex chromosomes are scientific revelations part of an evolving process subject to re-evaluation, and they remain nonetheless observations of natural phenomena, in the same way that physical examinations are. It is a subjective act to dismiss limitations presented by any method of visual inspection as insignificant, and so are the choices that are made when a single attribute or method is designated and elevated to represent eternal truth.

Famous author and likely billionaire J.K. Rowling mockingly equated womanhood to menstruation. She took offense at the phrase "people who menstruate" when it was used in the context of global menstrual health and hygiene, likely because

this use of language could include trans men and non-binary people, while underscoring the exclusion of trans women.

> "People who menstruate." I'm sure there used to be a word for those people. Someone help me out. Wumben? Wimpund? Woomud? (Rowling, 2020).
>
> —J.K. Rowling

However, the same author who equated sex with menstruation later reverted to "DNA testing" as the *veritas* of human sex, revealing a shifted perspective. Why didn't she demand that boxer Imane Khelif provide proof of menstruation, if that is what makes a woman? *Would it be inappropriate?*

> It's important to highlight that launching a PR campaign and applying layers of thick makeup requires far more time and effort than simply making DNA test results public. (Rowling, 2024)
>
> —J.K. Rowling

In "The Whole Woman", author Germaine Greer went as far as to deprive women with AIS (androgen insensitivity syndrome)[4] from their womanhood as she marks them as *incomplete males*.

> There is nothing new in using the catch-all category "female" to describe incomplete males [...] In most cases of AIS the newborn child has been mistakenly identified as female and raised as female. (Greer, 2000).
>
> —Germaine Greer

... while actual science gives us a much more nuanced story: "Given the female genitalia, patients with [Complete] AIS are generally raised as females with few reports of gender dysphoria. [...] As opposed to individuals with CAIS who are often raised as females, patients with [Partial] AIS may be raised as males or females." (Legato, 2017)

Interestingly enough, years later, she admitted that her former perspective that fixated on sex chromosomes was inaccurate.

> I agree that when I first was thinking about what is a woman, I fell for the usual view that women were people with two Xs and men were people with an X and a Y, and I now realize... that this was wrong. (John, 2016).
>
> —Germaine Greer

[4] "AIS characterizes clinical disorders due to dysfunction of the androgen receptor (AR) leading to hormone resistance despite age-appropriate production. Severity may range from complete androgen insensitivity syndrome (CAIS), partial insensitivity (PAIS), to mild insensitivity (MAIS)." (Legato, 2017).

A tedious task, it seems, defining sex by consistently nominating a singular property without disrupting intuitive understanding. The attempts that are made to codify the spirit of what seems self-evident—capturing the essence that *gracefully unfolds* into phenotypical expression—fail as nature resists complicity with the structures that we enforce upon it. We could ask ourselves to what extent the effort to chase this phantasmatic testimony truly differs from the earlier notion of a mythical essence that remains strategically obfuscated.

* * *

Another model worth mentioning is that of the essence of lived experience. It is the formation of scars inflicted by patriarchy that sets the stage of womanhood. The duality of male domination and female submission renders this model binary by design, and since lived experience is impossible to forfeit or pursue retroactively, it is inherently immutable. Once a victim of male hegemony, you are destined to live the life that was set out to be lived by the very same perpetrator. Womanhood is victimhood; it's inescapable once the body is marked by patriarchal violence and it's impenetrable—it is earned but only granted by birthright, certainly not appropriated.

In 1977, a letter written by Michigan Womyn's Music Festival organizer Lisa Vogel was directed to the feminist music collective Olivia Records, stating her objection to the inclusion of sound engineer Sandy Stone.

> We are writing concerning your decision to employ Sandy Stone (formerly [___]) as your recording engineer and sound technician. We feel that it was and is irresponsible of you to have presented this person as a woman to the women's community when in fact [she] is a post-operative transsexual [. . .] Sandy Stone grew up as a white male in this culture, with all the privileges and attitudes that that insures [sic]. It was [her] white male privilege that gave [her] access to the recording studio and the opportunity to gain engineering practice in the first place. [She] has never had to suffer the discrimination, self-hatred or fear that a woman must endure and survive in her life. And [she] cannot possess the special courage, brilliance, sensitivity and compassion that derives from that experience. How can we share feelings of sisterhood and solidarity with someone who has not had a woman's experience? (Vogel, 1977).
>
> —Lisa Vogel, 1977

In this instance, trans womanhood is not necessarily portrayed as an aggressive dominant force, but as the intrusion of privilege. *Genuine* womanhood, or sisterhood is defined by terms that one might attribute to human excellence, suggesting that only girlhood brings about this excellence, on account of male subjugation. Self-hatred and fear emerging from gendered power dynamics allegedly cannot lead to female excellence in the formation of nonconforming subjectivities. This polarizing attitude is reflected in the field of psychoanalysis, "The theorizing of how normative gender comes about, in other words, is neither unheard of [...] nor is it rare: psychoanalysis has always been thinking about gender formation of cis people; *but it has not been doing so with an eye toward changing the patient's gender.*" (Saketopoulou & Pellegrini, 2024).

Following the same current but more radical, the trans-antagonistic website feministcurrent.com founded by right-wing poltical candidate Meghan Murphy features an article from C.K. Egbert. She writes that womanhood is not to be traced back to genitalia, but it is homogenized into a political identity—ex negativo. Womanhood is signified by placing it in opposition to the male position. Woman is most of all *not-a-man*.

> People often fail to recognize that "woman" is not a personal identity but a political identity based upon a shared experience of oppression. The purpose of certain women-only spaces is not about excluding those with or without a particular genitalia [sic] (we didn't decide that having vaginas and uteruses made one subordinate; men did) or excluding those with a particular gender identity. This isn't about how strongly one identifies as a woman, whether one might subsequently be seen and treated as a woman, or whether one is marginalized and disadvantaged by gender hierarchy (for example, gay men are marginalized by patriarchy even though they are men). It is about controlling for the experience of male privilege. (Egbert, 2016).
>
> —C.K. Egbert

It's not so much the phenomenological account of living or having lived through oppression that seems to matter, not the formation of the subjet through societal structures, it is the privilege inherently contained within manhood that defines the female body—*a priori*. An identity manifested at birth, not temporally constructed, but afforded by virtue of a presupposed victimhood. After all, maybe one *is* born a woman.

Furthermore,

> Transgendered [sic] women cannot experience all forms of subordination that [cisgender] women as women face. Most female-born women are capable of becoming pregnant at some point in their lives. For those who cannot, infertility is often considered a "problem" that needs to be "fixed." Transgendered [sic] women do not experience disadvantage by virtue of their reproductive role (they

> don't need abortions, for instance), and neither are they considered somehow "defective" by virtue of not being able to fulfill a particular reproductive role.(Egbert, 2016).
>
> —C.K. Egbert

The failure to acknowledge that trans bodies are extensively deemed defective on all counts—artificial, damaged, mutilated, and incapacitated, especially in relation to reproduction—precisely demonstrates the double standard and ideological bias evident in the juxtaposition of trans and cis female oppression. Furthermore, the author is portraying women experiencing infertility as privileged by *virtue of not needing* abortion. The enduring anguish over the inability to bear children that affects and haunts many trans women and non-binary people is not only disavowed; it is strategically exploited and weaponized to deprive them of womanhood.

This is further echoed by Germaine Greer, illustrating a severe lack of engagement with the lived realities of the very people she denounces,

> MTF transsexuals [trans women] have so far shown no more interest in reproduction than most men do. (Greer, 2000).
>
> —Germaine Greer

In the following excerpt from a podcast, author Helen Joyce, portrays trans people as damaged and in need of lifelong special accommodations,

> we have to try to limit the harm, and that means reducing or keeping down the number of people who transition, and that's for two reasons. One of them is that every one of those people is a person who's been damaged, but the second one is that every one of those people is basically, you know, a huge problem to a sane world. Like, if you've got people that, whether they're transitioned, whether they're happily transitioned, whether they're unhappily transitioned, whether they're detransitioned, if you've got people who've dissociated from their sex in some way, every one of those people is someone who needs special accommodation in a sane world where we re-acknowledge the truth of sex, and I mean the people who've been damaged by it [. . .] I'm saying every one of those people; for 50, 60, 70 years is going to need things that the rest of us just don't need because the rest of us are just our sex, so the fewer of those people there are, the better in the sane world that I hope we will reach. (Helen Staniland, 2022, p. 04:52).
>
> —Helen Joyce

In addition to her unwarranted arrogance in assessing bodies by their functioning and capabilities, depicting people in need of accommodation as problematic or not in accordance with a *sane* world is remarkably ableist and contemptuous. Nonetheless, in another podcast, the very same thinker situates trans women in

a position of power and dominance, directing attention towards the penis and highlighting its potency as the origin of aggression:

> There just are these very powerful men whose entire aim in life is to transgress women's boundaries and to force everyone else to pretend that they're women because they get a neurotic thrill out of it. And those men think about nothing else, like men and their boners. Excuse me, that is the greatest force in human history, as far as I can see. (Winn, 2025, p. 01:06:35).
>
> —Helen Joyce

Cognitive dissonance at first sight? Let us remind ourselves of Umberto Eco on fascism, "The enemies are at the same time too strong and too weak" (Eco, 1995), or Sartre, "The anti-Semite does not see the Jew as he is, but as he imagines him, as a great power that secretly governs the world. Yet, the Jew is simultaneously depicted as weak, parasitic, and an alien being." (Sartre, 1995).

Helen Joyce may not hold a position of authoritative power, her words resonate through the UK Supreme court and are echoed by authoritarian leaders, aligning the feminist with reactionary opponents of women's reproductive rights, liberation, and equality.

In the following quote, the mere existence of a trans woman and her identification as a woman is characterized as an intrusive transgression of a sanctified space. It is a canonical example of gender *proprietorship*. Through the act of sex assignment, the immanent privilege of ownership and governance over womanhood is bestowed.

> No one ever asked women if they recognized sex-change males as belonging to their sex or considered whether being obliged to accept MTF transsexuals as women was at all damaging to their identity or self-esteem. (Greer, 2000).
>
> —Germaine Greer

A sense of identity and self-esteem are delicate traits that are well worth protecting, but apparently not for all humans. Male privilege is placed in stark contrast to the female privilege that it engenders, possibly an understandable yet misdirected retribution for inflicted wounds.

The following fragment from Janice Raymond's "The Transsexual Empire" raises an interesting question;

> No man can have the history of being born and located in this culture as a woman. He can have the history of wishing to be a woman and of acting like a woman, but his gender experience is that of a transsexual, not of a woman. Surgery may confer the artifacts of outward and inward female organs but it cannot confer the history of being born a woman in this society. (Raymond, 1994).

—Janice Raymond

What is *this* culture? Is a woman only a woman in *this* culture and society? What is the *universal* experience that renders her a woman? That of a working-class woman? A white woman with a cigar and scotch on a yacht, or an African woman trafficked and enslaved? Indigenous women of the Americas or the Pacific? An Algerian boxer or a South African runner? What about Yorùbá or Mosuo women? What is it that binds all women across spatio-temporal boundaries, disqualifies intersex and trans women, belittles and patronizes trans men, and scorns non-binary people? Perhaps it is the body after all? Most strikingly, a white Christian imperialist *reading* of the body. A reaffirmation of the colonial intrusion of gender that effaced diverse accounts of womanhood, through which a stable and binary notion became legible as naturally conceived. *So* natural that all other accounts of womanhood are simply left unacknowledged when defining that essence gained through experience. "The master's tools will never dismantle the master's house." (Lorde, 1984).

Harm and discrimination inflicted through violence and normative forces is downplayed when targeted towards incongruent or nonconforming bodies—it does not seem to contribute to shaping reality—only when committed by the (presumed) penis is violence acknowledged to mark the body as inherently female. Moreseo, it is re-appropriated to disenfranchise those who wish to redefine their own embodiment. Although efforts could be made to untangle biology from its preconceived purpose in a destiny marked by oppression, the perpetual accumulation of commodified victimhood and the reciprocal imposition of assaulthood onto marginalized bodies do not benefit the project of emancipation.

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The first model asserts the narrative of an unarticulated essence, expressed through biology but tacitly contained—through our own judgment, it is imbued with meaning. The second model attempts to simplify that narrative and elucidates a facticity conveyed within, often overlooking the shadows cast by its own clarity. The third model casts the body from a rigid mold, modeled on the master pattern that is male oppression; the course of life is preordained. So is the shape of the body.

This list is far from exhaustive, but these are the most prevalent essentialist perspectives used to form a constrictive definition of sex. They are not distinct tactics elegantly deployed to tackle the problem, but rather intermingled methods conveniently alternated and engaged on demand to uphold prevailing preconceptions—frequently at odds with one another. Nonetheless, proposing formulations of improved models that better articulate intuitive understanding may prove to be foolish—the inaccuracy and subjective nature inherently present in all efforts made to discern sex may as well be understood as an opportunity for discourse and possibility, rather than provoking contention and contempt. When

ill-defined and intuitive conceptions of embodied expression are codified into law, they become mechanisms of coercion and disciplinary power, arbitrariness masquerading as order.

Binary models *rely* on arbitrary thresholds of tolerance to reject irregularities on account of their own limited accuracy. We could come to an agreement; try to negotiate at which exact point the grains of sand transition into a heap. But when we think of sand, we're not *moving* grains into the heaps that we examine because the observer does not interfere. The taxonomy of human sex does not only *study* bodies and behavior. It exerts power over the subjects of its own inquiry by perpetually reestablishing an assignment that was initially never even consented to. For many, legal recognition of sex reassignment is currently unattainable or existing rights are being eroded, reparative conversion practices that coerce behavior and desire into conformity still remain legal around the world. Despite efforts by the UN and WHO to condemn such practices, they are even endorsed by some institutions. Medical interventions are prohibited through state enforced bariers or coerced without patient consent in order to sustain a binary harmony and uphold the very same status quo that was initially invoked for the purpose of sex assignment.

Binary and immutable are not interchangeable qualifiers; mutable properties can live within a binary system, and immutable traits can be diverse. By conflating the terms and interchanging them deliberately, it seems that we are not seeking to define the sexed body as much as rebuking the fluidity of sex as a concept. Not challenging the variability, plasticity, and temporality of biology, but negating the sexed body as a discursive field. Those who live below the threshold are systematically dismissed when discourse is discarded. The very existence of the threshold is trivialized. There is no space for discourse in courts[5], legislative institutions and executive powers when they unilaterally defy the fluidity of sex. It is crucial that we learn to identify the patterns of violence inflicted on those living below that threshold. We must acknowledge that our entitlement to open inquiry is actively denied through self-perpetuating commonsensical thought and the imposed signification of a procreative prospect.

When it is said that *sex matters*, an assertion is made to reject gender as a historically construed subject in favor of a stable depiction of the distinctions that nature *provides* us—preceding all signification. However, once extracted what is learned from that truth is then applied to structure society and to objectify subjectivities, it seems that it is truly gender that matters. If gender is what

[5]Dr Victoria McCloud "applied to be a party to the Supreme Court case of For Women Scotland, backed by the Good Law Project along with a trans man. The court refused to allow trans people to put in evidence reflecting the impact of potential interpretations of the act on the trans community. They refused without reasons that, with genuine respect to them, hobbled their ability to explore the human rights implications of alternative interpretations of the act. We were not heard. The Supreme Court did not consider the human rights consequences of its choice of interpretation for all UK citizens, not just people like me or all people visiting the UK or working or living here, including for the EU. And some of those people's sex will now change, believe it or not." (QueerAF, 2025, p. 05:09).

assigns meaning to the apparent qualities of sex, such sloganesque expressions paradoxically disintegrate as they relocate themselves into the realm of gender. This appeal to nature and its arrogance to determine destiny is exactly what feminism has sought to scrutinize and dislodge from its historical constraints.

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